

14. *Wells Fargo Bank, N.A., v. Sanchez*, Case No. CIVSB2528608
Plaintiff's Motion for Judgment on the Pleadings
8/11/26, 9:00 a.m., Dept. S-17

The Court would **CONTINUE** to allow movant to file a supplemental declaration showing compliance with the meet-and-confer requirement.

Importantly, before filing a motion for judgment on the pleadings (JOP), the moving party "shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to the motion" (Code Civ. Proc., § 439.) Here, the declaration submitted in support fails to assert compliance with the statute. Rather, it simply asserts a letter outlining Plaintiff's position on JOP was sent and not responded to. (See Lopez Decl., ¶¶4-6.) At a minimum, a declaration needs to show attempts to satisfy the code's "in person, by telephone, or by video conference" requirement. The movant will file a supplemental declaration at least ten court days prior to the next hearing.

15. *Boyer, et al, v. Cambridge Sierra Holdings, LLC, et al*, Case No. CIVSB2522108
Plaintiffs' Motion to Deem Admitted Matters in Requests for Admissions, Set One
8/11/26, 9:00 a.m., Dept. S-17

The Court would **GRANT** this unopposed motion.

Plaintiffs served their first set of discovery on Defendant Cambridge Sierra Holdings (Cambridge) on December 31, 2025. This first set of discovery included the at-issue Requests for Admissions, Set One. (Needelman Decl., ¶¶3-5.)

Responses were due on February 3, 2026, but no responses were received. (*Id.*, ¶6.) Plaintiffs' counsel sent an email regarding the failure to respond on February 6, 2026, and gave Defendant a 2-week extension. (*Ibid.*) Again, no responses came by the deadline. (Needelman Decl., ¶8.) Plaintiff's counsel then gave a deadline of March 13, 2026 for responses to be provided, indicating that these motions would be filed thereafter. (*Id.*, ¶9.) This motion followed.

"The law governing the consequences for failing to respond to requests for admission may be the most unforgiving in civil procedure." (*Demyer v. Costa Mesa Mobile Home Estates* (1995) 36 Cal.App.4th 393, 394, disapproved on other grounds *Wilcox v. Birtwhistle* (1999) 21 Cal.4th 973, 983.) "There is no relief under section 473." (*Ibid.*) "The defaulting party is limited to the remedies available in (CCP § 2033.280)." (*Ibid.*) "The propounding party need give no warning (at least according to one well-respected authority) – it simply files a motion to deem the matters covered by the requests admitted." (*Demyer, supra*, 36 Cal.App.4th at p. 395.) "The nonresponding party then has until the 'hearing on the motion' to serve responses to the admissions request." (*Ibid.*) "If the party manages to serve its responses before the hearing, the court has no discretion but to deny the motion." (*Ibid.*) "But woe betide the party who fails to serve responses before the hearing." (*Ibid.*) "In that instance the court has

no discretion but to grant the admission motion, usually with fatal consequences for the defaulting party.” (*Demyer, supra*, 36 Cal.App.4th at pp. 395-396.)

19. *Opendoor Property Trust I v. Zhang, et al*, Case No. LLTSB2400104
Motion for Summary Judgment Against All Occupants
8/11/26, 9:00 a.m., Dept. S-17

This matter was continued from July 14, 2026, to allow for the filing of exhibits

Tentative Ruling

The Court would **GRANT** summary judgment as to “All Unknown Occupants” consistent with the prior given service.

Case Summary

This is an unlawful detainer action. Plaintiff Opendoor asserts it is the owner of the at-issue property and that Defendant-Tenant failed to vacate after a five-day notice to vacate. As such, it filed an unlawful detainer action on October 2, 2024. Relevant here, a motion for summary judgment against Defendant Zhang was entered on May 21, 2026. That judgment is currently on appeal.

On June 6, 2026, Plaintiff sought to amend the judgment by *ex parte* to add “All Unknown Occupants,” stating that the Proof of Service on All Unknown Occupants was inadvertently not filed with the Court. On June 11, 2026, the Court denied that *ex parte* application but stated Plaintiff could bring a motion for summary judgment. This motion followed.

Statement of Law

Summary judgment is proper where there is no triable issue as to any material fact and the moving party is entitled to judgment as a matter of law. (Code Civ. Proc., § 437c(c).) The analysis requires three steps: First, the court must identify the issues framed within the pleading. (*AARTS Productions, Inc. v. Crocker National Bank* (1986) 179 Cal.App.3d 1061, 1064-1065.) Second, it must determine whether the moving party has established facts sufficient to negate the claim and justify a judgment in movant’s favor. (*Ibid.*) Third, and finally, when a summary judgment motion, as a prima facie matter, justifies a judgment, the court must determine whether the opposition demonstrates the existence of a triable issue of material fact. (*Ibid.*) The court’s sole function on a motion for summary judgment is issue finding, not issue determination. (See *Zavala v. Arce* (1997) 58 Cal.App.4th 915, 926.)

Analysis

Now before the Court is Plaintiff’s motion for summary judgment against “all occupants”.

The motion first came before the Court on July 14, 2026. At that time, the Court continued the motion because Plaintiff failed to attach the referenced exhibits. In addition, a proper Proof of Service of Summons related to All Unknown Occupants (POS) was not on file.